

the gestione del cantiere di Ardea sono stati forniti da Blu Work” (verbale ispettivo 16/2/2023, p. 3);
“il sistema di rilevazione delle presenze è stato implementato per garantire la sicurezza e la gestione delle risorse umane nel cantiere” (verbale ispettivo 16/2/2023, p. 3);
“la registrazione biometrica è stata adottata per migliorare l’efficienza e ridurre le frodi legate alle presenze” (verbale ispettivo 16/2/2023, p. 3).

3. Le conclusioni

Alla luce delle informazioni raccolte e delle dichiarazioni rese, si evidenzia che:

- l'utilizzo del sistema di riconoscimento facciale per la rilevazione delle presenze dei dipendenti solleva questioni di legittimità in relazione alla normativa vigente in materia di protezione dei dati personali;
- non sono state fornite prove sufficienti a giustificare l'adozione di un sistema così invasivo, considerando che esistono alternative meno invasive per il monitoraggio delle presenze;
- la Società non ha dimostrato di aver effettuato una valutazione d'impatto sulla protezione dei dati (DPIA) prima di implementare il sistema di riconoscimento facciale.

Pertanto, si ritiene necessario adottare misure correttive per garantire la conformità della Società alle disposizioni del Regolamento (UE) 2016/679 e del Codice.

4. I provvedimenti

Si dispone che Airone società consortile a r.l.:

- a) cessi immediatamente l'utilizzo del sistema di riconoscimento facciale per la rilevazione delle presenze;
- b) adotti misure alternative per la registrazione delle presenze dei dipendenti, che siano conformi alla normativa sulla protezione dei dati personali;
- c) presenti una relazione dettagliata all'Autorità entro 30 giorni dalla ricezione del presente provvedimento, attestante l'avvenuta cessazione dell'utilizzo del sistema e le misure adottate in sostituzione.

Il presente provvedimento sarà pubblicato sul sito web dell'Autorità e comunicato alla Società.

Roma, 22 febbraio 2024

IL GARANTE PER LA PROTEZIONE DEI DATI PERSONALI

Prof. Pasquale Stanzone

****Airone also applies regarding Blu Work****

(verbale cit., p. 3);

as of now, “Blu Work employs 13 personnel units at the Ardea site and 4 personnel units engaged in other functions” (verbale cit., p. 3);

“Igiene Urbana Evolution [...] has arranged the system and initiated the necessary treatments for personnel management, exclusively. Through the installed systems and collaboration with the company Unica, the attendance sheet for all employees of the companies operating at the site is prepared, indicating the personnel's hours, from which the payments are calculated, including for the workers of Airone and Blu Work” (verbale cit., p. 3);

“Airone and Blu Work do not consider themselves the holders [...] of the processing and [are not] able to accurately state the date of activation of the system and to describe the technical characteristics and details of the operation” (verbale cit., p. 3);

the Company “clarified that it has not formally appointed in writing the company Igiene Urbana Evolution as the data processing manager” (verbale cit., p. 3);

the Companies Airone and Blu Work “operate only at the Ardea site and have not installed biometric detection devices at other sites” (verbale cit., p. 3);

“currently, the biometric detection device is not in operation [...]. Therefore, the company together with Blu Work has restored attendance detection through [...] signature sheets” (verbale cit., p. 4);

the aspects related to the installation of the devices, the designation of data processing managers, and the preparation of an impact assessment pursuant to Article 35 of the Regulation “have been managed by Igiene Urbana Evolution” (verbale cit., p. 4);

regarding the information to be provided to the data subjects pursuant to Article 13 of the Regulation, this has been provided orally, as both Companies have not provided the information in writing regarding the processing of biometric data (verbale cit., p. 4);

the designation of a data protection officer “is in the process of [being] formalized” (verbale cit., p. 4-5);

the register of processing activities has not been established (verbale cit., p. 5);

“the payroll management for Airone employees is carried out by Igiene Urbana Evolution, and for Blu Work employees [by the associated firm Marzella and Puccianti]”; regarding the related processing, the designation of a data processing manager has not been made, respectively, for Igiene Urbana Evolution and the associated firm Marzella and Puccianti (verbale cit., p. 5).

On January 26, 2023, during the inspection conducted at the administrative headquarters of Igiene Urbana Evolution s.r.l., the latter declared that:

the biometric system was activated “in December 2021 (first clocking in on December 27, 2021)” (verbale cit., p. 3);

“within the site, there are other employees of Blu Work and Airone” (verbale cit., p. 3);

“the company formalized in March 2021, with Unica srls, the purchase of the attendance detection devices, which were physically installed by DM Technology srl under a previous service and maintenance contract” (verbale cit., p. 4).

On January 27, 2023, the inspection activities continued at the administrative headquarters of Igiene Urbana Evolution s.r.l. On this occasion, the latter further declared that:

“UNICA srls is the company that provides administrative, organizational, and technical consulting services” for the Company (verbale ispettivo 27/1/2023, p. 2);

“the devices are installed to carry out attendance detection through a one-to-many comparison of the biometric facial imprint of the employees and [...] Unica srls provided the user manual for them. Subsequently, the technician from DM Technology provided training on the use of the device to the site manager” (verbale cit., p. 2);

during access to the Junior Web system, with Admin profile, the “attendance report for December 2022 was viewed, including employees from various sites (indicated as CDC, cost centers). [...] of all the cost centers displayed, only 10 refer to the company. The remaining CDC refer to other companies, for which DM Technology provides assistance on biometric detection devices” (verbale cit., p. 3);

“the biometric data of the data subjects resides exclusively on the device and is not accessible remotely, nor locally, except for deletion, which can only be performed directly on the device” (verbale cit., p. 3);

“the accounts to access Junior Web are provided and managed by DM Technology, which also manages the access accounts for the device” (verbale cit., p. 3);

“probably on many installed devices, the default password has been maintained, present on the device located in Ardea. For this type of credential, there is no expiration of validity, which is instead provided for Junior Web accounts” (verbale cit., p. 3);

“the devices located at the sites of Igiene Urbana Evolution are connected to a server located at the company's headquarters [...], for sending data related to clocking in. The devices located at the sites of other companies connect to respective and different servers. The data is then integrated by DM. **Technology, for viewing with the profile Admin** (minutes cited, p. 4);

“the device is equipped with a special algorithm ‘Bionano’ to irreversibly encrypt biometric data” (minutes cited, p. 4).

On May 30, 2023, inspection checks were also carried out at Unica s.r.l.s. and DM Technology s.r.l.

****3. The initiation of the procedure for the adoption of corrective measures and the Company's submissions.****

On September 13, 2023, the Office notified the Company of the alleged violations of the Regulation found, pursuant to Article 166, paragraph 5, of the Code, with reference to Articles 5, paragraph 1, letter a), 9, paragraph 2, 13, 28, 30, 32, and 35 of the Regulation.

The Company did not submit any defensive writings.

****4. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.****

****4.1. Violation of Article 5, paragraph 1, letter a) and 9 of the Regulation in relation to the processing of data of its employees.****

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations concerning the claimants that are not compliant with the regulations on personal data protection. In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor."

On the merits, following the investigative activity, it was established that the Company has used a biometric system, based on facial recognition, aimed at detecting the presence of employees at work, starting from December 2021 (the date on which the system was activated, according to the statement made by L'Igiene Urbana Evolution s.r.l., without specifying the period during which the registration of employees in the system was carried out, with consequent data processing) until January 2023, the date on which the system was deactivated following the initiation of the verification activity by the Authority.

Contrary to what was stated, the Company appears to have processed data of its employees as the data controller since it provided the list of workers to detect their presence at the Ardea construction site and had access to the Junior Web database for attendance control through biometric detection. This is in light of the definition of data controller in the personal data protection system (Article 4, no. 7) of the Regulation: "the person [...] legal entity [...] who, individually or together with others, determines the purposes and means of the processing of personal data."

The processing concerned the 13 employees working at the construction site (see minutes of 02/16/2023, p. 3, Annex 2 and subsequent integration). The Company, in this regard, did not clarify the specific reasons for adopting a system based on biometric technology for detecting employee attendance.

Preliminarily, it is noted that, as clarified by the Authority, there is processing of biometric data both in the registration phase (so-called enrolment), consisting of acquiring the biometric characteristics of the data subject (facial characteristics, in this case; see points 6.1 and 6.2 of Annex A to the Guarantor's provision of November 12, 2014, no. 513, at www.garanteprivacy.it, web doc. no. 3556992), and in the biometric recognition phase, at the time of attendance detection (see also point 6.3 of Annex A to the aforementioned provision). Therefore, even in the case of extraction of the so-called template, there is processing of biometric data, with consequent application of the specific regulations provided for by the legal system.

In this regard, based on the regulations on personal data protection, the processing of biometric data (generally prohibited under Article 9, paragraph 1 of the Regulation) is allowed only if one of the conditions indicated in Article 9, paragraph 2 of the Regulation is met and, regarding processing carried out in the employment context, only when the processing is "necessary for fulfilling the obligations and exercising the specific rights of the data controller or the data subject in the field of labor law and social security and social protection, to the extent that it is authorized by Union law or the law of Member States or by a collective agreement under the law of Member States, in the presence of appropriate safeguards for the fundamental rights and interests of the data subject" (Article 9, paragraph 2, letter b), of the Regulation; see also: Article 88, paragraph 1 and recitals 51-53 of the Regulation).

The employer is also required to apply the general principles of processing, particularly those of lawfulness, fairness, and transparency, minimization, integrity, and confidentiality of data (Article 5, paragraph 1, letters a), c), and f) of the Regulation).

In application of these provisions, although in the employment context the purposes of detecting employee attendance and verifying compliance with working hours may fall within the scope of Article 9, paragraph 2, letter b) of the Regulation, however, the processing of biometric data is allowed only "to the extent that it is authorized by Union law or the law of Member States."

members [...] in the presence of appropriate guarantees for the fundamental rights and interests of the

data subject” (art. 9, par. 2, lett. b), and cons. nn. 51-53 of the Regulation).

Also taking into account the provisions of art. 2-septies of the Code (Guarantee measures for the processing of genetic, biometric, and health-related data), under which the aforementioned treatments can be carried out in accordance with the guarantee measures established by the Authority (pursuant to art. 9, par. 4, of the Regulation), the current legal framework does not allow for the processing of biometric data of employees for the purpose of monitoring attendance at work.

This has been reiterated by the Authority with decisions no. 369 of November 10, 2022 (doc. web no. 9832838) and no. 16 of January 14, 2021 (doc. web no. 9542071). The use of biometric data in the context of the ordinary management of the employment relationship (such as attendance monitoring) is not compliant with the principles of minimization and proportionality of processing (art. 5, par. 1, lett. c) of the Regulation).

The Company, in order to account for the actual hours worked and to verify the presence of workers at the workplace, could have adopted measures useful for this purpose but less invasive of the rights of the data subjects (e.g., automatic checks via badges, direct verifications, etc.).

The proportionality assessment of the processing of biometric data consisting of facial recognition should also have taken into account the risks to the rights and freedoms of the data subjects associated with the use of such specific biometric technology, as recognized by both national and European law (see d.l. 10/5/2023, no. 51, converted into law 3/7/2023, no. 87, which with art. 8-ter extended until December 31, 2025, the suspension of the installation and use of video surveillance systems with facial recognition “in public or publicly accessible places, by public authorities or private entities,” in order to “regulate in accordance with the admissibility requirements, conditions, and guarantees related to the use of facial recognition systems in compliance with the principle of proportionality provided for by article 52 of the Charter of Fundamental Rights of the European Union”; see also: European Data Protection Board, Guidelines 05/2022 on the use of facial recognition technology in the area of law enforcement, adopted on 26/7/2023, specifically points 17, 34, and 35 on the risks of facial recognition; Guidelines 3/2019 on the processing of personal data through video devices, adopted on January 29, 2020, specifically points 4 and 73; see also the Provision of February 10, 2022, no. 50, doc. web no. 9751362, adopted, although in a different context, regarding facial recognition).

Finally, the fact that the manufacturer and supplier of the facial recognition devices (entities that must in any case take into account the right to data protection: see cons. 78 of the Regulation) produced a “declaration and certification of conformity of the biometric device [...], in which it was stated that the device was fully compliant with the GDPR,” does not absolve the Company of responsibility, considering that the data controller, in light of what is established by art. 5, par. 2, of the Regulation, under the so-called accountability principle, “is responsible for compliance [with the general principles of processing] and able to demonstrate it,” with regard to the obligations that weigh on the controller (art. 24 of the Regulation).

This is also in consideration of the fact that in the specific case, the Authority, even recently (as mentioned above), has ruled on the legitimacy criteria and the principles applicable to the processing of biometric data in the context of the employment relationship, publishing on its institutional website the decisions adopted in this matter.

Therefore, the data controller, before proceeding with the use of devices made by third parties, should have verified the compliance of the related processing with the applicable principles (art. 5 of the Regulation).

Based on the above reasons, the processing of biometric data of its employees carried out by the Company is therefore found to have been conducted without an appropriate legal basis, in violation of arts. 5, par. 1, lett. a) and 9 of the Regulation.

4.2. Violation of arts. 5, par. 1, lett. a) and 9 of the Regulation in relation to the processing of data of employees of other companies.

As a result of access to the system and examination of the documentation acquired in the records, it also emerged that the list of employees to be subjected to attendance verification through the biometric detection system is unique for the three companies operating at the Ardea construction site (in addition to the Company, also Igiene Urbana Evolution s.r.l. and Blue Work s.r.l.), which provided the list of their respective employees to be verified.

In fact, both the paper attendance sheet and the attendance log extracted from the Junior Web application, as well as the data exported from the Anviz device acquired in the records, present a shared list among the three companies where next to each name is indicated the company of belonging (see inspection report 19/1/2023, Annex 1 [Attendance Log January 2023 - report generated by Junior Web and attendance sheets of 19/1/2023], 2 [tables with data export from the device] and 3 [screenshot access to data contained in the device]).

From the documentation acquired during the inspection, it also emerged that the processing overall carried out by the system also involved employees of Unica s.r.l.s. and DM.

****Technology s.r.l.**** (see inspection report dated 27.1.2023, Annex 6, "Total Employees Export Table," containing the list of clock-ins made as of 27/1/2023 related to the employees of L'Igiene Urbana Evolution s.r.l., Airone società consortile a r.l., Blue Work s.r.l., Unica s.r.l.s., and DM technology). Therefore, the Company has also processed data related to the presence of employees of L'Igiene Urbana Evolution s.r.l., Blue Work s.r.l., Unica s.r.l.s., and DM Technology s.r.l., derived from the biometric attendance detection system, also in the absence of any applicable legal basis among those provided for in Article 9, paragraph 2 of the Regulation. The described processing has therefore occurred in violation of Articles 5, paragraph 1, letter a) and 9 of the Regulation.

****4.3. Violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.****

The Authority has repeatedly stated that the employer, in application of the principle of transparency, has the obligation to inform its employees and collaborators, in any case, of the essential characteristics of the data processing carried out in the context of the employment relationship as well as the tools through which the processing is carried out in accordance with what is specifically indicated in Article 13 of the Regulation. This also considering that, within the employment relationship, the obligation to inform the employee is also an expression of the duty of fairness (Article 5, paragraph 1, letter a) of the Regulation). In this specific case, it has emerged that the Company has failed to provide any information regarding the characteristics of the biometric data processing through facial recognition (see report dated 16/2/2023, p. 4, where the Company stated that it provided information orally). The Company has indeed not provided any evidence of the issuance of information to the data subjects, considering that according to Article 12, paragraph 1 of the Regulation "the information shall be provided in writing or by other means, including, where appropriate, by electronic means. If requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means." This has resulted in the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

****4.4. Violation of Article 28 of the Regulation.****

According to the provisions of the Regulation, the data controller, in the context of preparing the technical and organizational measures that are its responsibility, also from a security perspective (Articles 24 and 32 of the Regulation), may use a processor for the performance of certain processing activities, to which it gives specific instructions (see Recital 81 of the Regulation). In this case, the controller "only uses processors that provide sufficient guarantees to implement [the aforementioned measures] in such a way that the processing meets the requirements of the Regulation and ensures the protection of the rights of the data subjects" (Article 28, paragraph 1, of the Regulation). Pursuant to the aforementioned Article 28 of the Regulation, the controller may assign processing to external subjects, adequately regulating the relationship with a contract (or another legal act) and providing instructions regarding the main characteristics of the processing. The processor is therefore authorized to process the data of the data subjects "only on the documented instructions of the controller" (Article 28, paragraph 3, letter a), of the Regulation) and within the specific limits defined by the data controller. The Company, while availing itself of the services provided by L'Igiene Urbana Evolution s.r.l. for the

management of employee payrolls (see inspection report dated 16/2/2023, p. 5) and DM Technology s.r.l. regarding the management of the Junior Web application, carried out in ways that allowed access to employee data related to attendance detection and the related processing (see inspection report dated 30.5.2023, at DM Technology s.r.l., p. 3), did not designate the aforementioned companies as processors, as instead required by Article 28 of the Regulation (see report dated 16/2/2023, p. 5). For the above reasons, the Company has violated Article 28 of the Regulation.

****4.5. Violation of Article 35 of the Regulation.****

According to Article 35 of the Regulation, in relation to processing that involves “the use of new technologies, considering the nature, scope, context, and purposes of the processing, [such as] to present a high risk to the rights and freedoms of natural persons,” the controller is required to carry out a data protection impact assessment before the start of the planned processing. In this regard, the Guidelines WP 248rev.01 of 4/4/2017 (“Guidelines on Data Protection Impact Assessment and Determining the Likelihood that Processing ‘May Result in a High Risk’ under Regulation (EU) 2016/679”) identify, among the criteria under which the data controller is required to carry out an impact assessment, relevant in this specific case, the processing of “sensitive data,” which includes biometric data (see Chapter III, B, no. 4), the processing carried out concerning “vulnerable” data subjects (e.g., as part of an employment relationship; see Chapter III, B, no. 7) as well as processing that involves “innovative use or [the] application of new technological or organizational solutions” (see Chapter III, B, no. 8).

Further indications have been provided in this regard by the decision of the Guarantor dated October 11, 2018, no. 467 (“List of types of processing subject to the requirement of a data protection impact assessment pursuant to Article 35, paragraph 4, of Regulation (EU) No. 2016/679”, in G.U., S. G. no. 269 of November 19, 2018, specifically nos. 6 and 7), although it refers to cross-border processing.

Despite having adopted a biometric authentication system for the purpose of monitoring the attendance of its employees, the Company did not carry out an impact assessment prior to the commencement of the processing activities, thus violating, as stated above, Article 35, paragraph 1 of the Regulation.

4.6. Violation of Articles 30 and 32 of the Regulation.

According to Article 30 of the Regulation, within the record of processing activities carried out by the data controller, the latter, under its own responsibility, is required to indicate the categories of personal data subject to processing (Article 30, paragraph 1, letter c) of the Regulation). As clarified by the Authority, the record constitutes one of the main elements of accountability of the data controller, as a tool suitable for providing an updated overview of the ongoing processing within its organization, essential for any risk assessment or analysis activity and therefore preliminary to such activities.

The record must be in written form, including electronic, and must be presented upon request to the Guarantor (see in this regard the FAQs on the record of processing activities, made available by the Guarantor on its institutional website in October 2018, web doc no. 9047529).

In the specific case, it has also emerged that the Company did not prepare the record of processing operations and therefore did not register the processing of biometric data therein (see minutes of February 16, 2023, p. 5). This is in violation of what is established by Article 30 of the Regulation.

During the access carried out during the inspection activity to the Anviz terminal used for clocking in, following facial recognition, it emerged that the authentication credentials with Admin profile were the same as those reported in the user manual (userID, so-called default ID, “0”, password “12345”) and had never been modified during the use of the system, thus since December 2021. This made it possible to access the information stored in the terminal based on the simple consultation of the user manual of the device, easily available online, and in any case based on the typing of the first five cardinal numbers in ascending order (see Annex 2, inspection report of January 19, 2023, containing photographic documentation of the accesses made, specifically IMG_20230119_103040943.jpg).

Such conduct is not compliant with what is provided for by Article 32 of the Regulation, according to

which the data controller is required to implement “appropriate technical and organizational measures to ensure a level of security appropriate to the risk,” ensuring “on a permanent basis the confidentiality” of the personal data processed, in light of “the state of the art and the costs of implementation, as well as the nature, the subject matter, the context, and the purposes of the processing, as well as the risk of varying probability and severity for the rights and freedoms of natural persons.”

The Company has therefore also violated Article 32 of the Regulation.

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, nor does any of the cases provided for by Article 11 of the Guarantor Regulation No. 1/2019 apply.

The processing of personal data carried out by the Company, and specifically the processing of biometric data (facial recognition) relating to its employees for attendance monitoring purposes, is indeed unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a), 9, 13, 28, 30, 32, and 35 of the Regulation.

The violation established in the terms outlined in the reasoning cannot be considered “minor,” given the nature of the violation that concerned the general principles and the conditions of lawfulness of the processing of special data, as well as the severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The Authority acknowledges that, according to what has been declared under its own responsibility, the Company has suspended the processing operations of biometric data after the initiation of the inspection activity (see inspection report of February 16, 2023).

Therefore, in light of the corrective powers granted by Article 58, paragraph 2 of the Regulation, it is ordered to delete the collected biometric data (Article 58, paragraph 2, letter g) of the Regulation) and an administrative monetary penalty is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

6. Adoption of the injunction order for the application of the administrative monetary penalty and accessory sanctions (Articles 58, par. 2, lett. i), and 83 of the Regulation; art. 166, comma 7, of the Code).

As a result of the procedure, it is found that Airone società consortile a r.l. has violated articles 5, par. 1, lett. a), 9, 13, 28, 30, 32, and 35 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by art. 83, par. 4, lett. a) and par. 5, lett. a) and b) of the Regulation is foreseen, through the adoption of an injunction order (art. 18, l. 24/11/1981, n. 689).

It is deemed necessary to apply paragraph 3 of art. 83 of the Regulation, which states that “If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same art. 83, par. 5.

With reference to the elements listed in art. 83, par. 2 of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must “in any case [be] effective, proportionate, and dissuasive” (art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) in relation to the nature, gravity, and duration of the violation, the nature of the violation concerning the general principles and the conditions of lawfulness of the processing and the processing of

particular biometric data using facial recognition technology has been considered against the Company;

b) the duration of the violation, which lasted for more than a year, has also been considered against the Company;

c) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, the conduct of the company and its degree of responsibility, which did not comply with the data protection regulations concerning multiple provisions, have been taken into account;

d) in favor of the Company, consideration has been given to the cooperation with the Supervisory Authority and the decision to suspend processing activities after the start of the inspection activities. It is also believed that the economic conditions of the offender, determined based on the revenues obtained by the Company with reference to the abbreviated financial statements for the year 2022, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation). Lastly, the amount of sanctions imposed in similar cases is taken into account.

In light of the above-mentioned elements and the assessments made, it is deemed appropriate, in this case, to apply to Airone società consortile a r.l. the administrative sanction of the payment of an amount equal to 5,000 euros (five thousand).

In this context, it is also deemed appropriate, considering the type of violations identified that concerned the general principles and conditions of lawfulness of the processing, that pursuant to art. 166, comma 7, of the Code and art. 16, comma 1, of the Regulation of the Guarantor n. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is also believed that the conditions referred to in art. 17 of Regulation n. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

finds the unlawfulness of the processing carried out by Airone società consortile a r.l., represented by its legal representative, with registered office at Via Giustiniano, 30 Latina (LT), C.F. 03132550595, pursuant to art. 143 of the Code, for the violation of articles 5, par. 1, lett. a), 9, 13, 28, 30, 32, and 35 of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. g) of the Regulation to Airone società consortile a r.l., to delete the collected biometric data;

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation to Airone società consortile a r.l., to pay the sum of 5,000 euros (five thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

REQUIRES

therefore the same Company to pay the aforementioned sum of 5,000 euros (five thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the subsequent executive acts pursuant to art. 27 of law n. 689/1981. It is reminded that the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (art. 166, comma 8, of the Code);

DISPOSES

the publication of this provision on the Guarantor's website pursuant to art. 166, comma 7, of the Code and art. 16, comma 1, of the Regulation of the Guarantor n. 1/2019, and believes that the conditions referred to in art. 17 of Regulation n. 1/2019 are met.

Requests Airone società consortile a r.l. to communicate what initiatives have been undertaken to end to delete the collected biometric data, and to provide adequately documented feedback in accordance with Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative

Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the location identified in the same Article 10, within thirty days from the date of communication of the provision itself, or within sixty days if the appellant resides abroad.

Rome, February 22, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei